



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session

Majority Research Staff

[SB 1168](#): ballots; categories; count

LIVINGSTON FLOOR AMENDMENT

1. Exempts a recognized dental school, dental therapy school and dental hygiene school from business entity or facility registration requirements with the Dental Board.
2. Makes technical changes.

LIVINGSTON FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO S.B. 1168
(Reference to APPROPRIATIONS S/E Committee amendment)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[~~GREEN STRIKEOUT IN BRACKETS~~] indicates new text removed from statute or previously enacted session law.

[~~Green strikeout in brackets~~] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<~~Green strikeout in carets~~>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Strike everything after the enacting clause and insert:

3 "<<Section 1. Section 32-1213, Arizona Revised Statutes, is amended
4 to read:

5 32-1213. Business entities; registration; renewal; civil
6 penalty; exceptions

7 A. A business entity may not offer dental services pursuant to this
8 chapter unless:

9 1. The business entity is registered with the board pursuant to
10 this section.

11 2. The services are conducted by a licensee pursuant to this
12 chapter.

13 B. The business entity must file a registration application on a
14 form provided by the board. The application must include:

15 1. A description of the business entity's services offered to the
16 public.

17 2. The name of any dentist who is authorized to provide and who is
18 responsible for providing the dental services offered at each office.

19 3. The names and addresses of the officers and directors of the
20 business entity.

21 4. The name of the business entity's custodian of records.

22 5. A registration fee prescribed by the board in rule.

23 C. A business entity must file a separate registration application
24 and pay a fee for each branch office in this state.

25 D. A registration expires three years after the date the board
26 issues the registration. A business entity that wishes to renew a
27 registration must submit an application for renewal as prescribed by the

1 board on a triennial basis on a form provided by the board before the
2 expiration date. A business entity that fails to renew the registration
3 before the expiration date is subject to a late fee as prescribed by the
4 board by rule. The board may stagger the dates for renewal applications.

5 E. The business entity must notify the board in writing within
6 thirty days after any change:

7 1. In the business entity's name, address or telephone number.

8 2. In the officers or directors of the business entity.

9 3. In the name of any dentist who is authorized to provide and who
10 is responsible for providing the dental services in any facility.

11 4. [IN] the name of the business entity's custodian of records who
12 will accept subpoenas and respond to patient records requests.

13 F. The business entity shall establish a written protocol for the
14 secure storage, transfer and access of the dental records of the business
15 entity's patients. This protocol must include, at a minimum, procedures
16 for:

17 1. Notifying patients of the future locations of their records if
18 the business entity terminates or sells the practice.

19 2. Disposing of unclaimed dental records.

20 3. The timely response to requests by patients for copies of their
21 records.

22 G. The business entity must notify the board within thirty days
23 after the dissolution of any registered business entity or the closing or
24 relocation of any facility and must disclose to the board the business
25 entity's procedure by which its patients may obtain their records.

26 H. The board may do any of the following pursuant to its
27 disciplinary procedures if a business entity violates the board's statutes
28 or rules:

29 1. Refuse to issue a registration.

30 2. Suspend or revoke a registration.

31 3. Impose a civil penalty of not more than \$2,000 for each
32 violation.

33 4. Enter a decree of censure.

34 5. Issue an order prescribing a period and terms of probation that
35 are best adapted to protect the public welfare and that may include a
36 requirement for restitution to a patient for a violation of this chapter
37 or rules adopted pursuant to this chapter.

38 6. Issue a letter of concern if a business entity's actions may
39 cause the board to take disciplinary action.

40 I. The board shall deposit, pursuant to sections 35-146 and 35-147,
41 civil penalties collected pursuant to this section in the state general
42 fund.

43 J. This section does not apply to:

44 1. A sole proprietorship or partnership that consists exclusively
45 of dentists who are licensed pursuant to this chapter.

46 2. Any of the following entities licensed under title 20:

47 (a) A service corporation.

48 (b) An insurer authorized to transact disability insurance.

1 (c) A prepaid dental plan organization that does not provide
2 directly for prepaid dental services.

3 (d) A health care services organization that does not provide
4 directly for dental services.

5 3. A professional corporation or professional limited liability
6 company, the shares of which are exclusively owned by dentists who are
7 licensed pursuant to this chapter and that is formed to engage in the
8 practice of dentistry pursuant to title 10, chapter 20 or title 29
9 relating to professional limited liability companies.

10 4. A facility regulated by the federal government or a state,
11 district or territory of the United States.

12 5. An administrator or executor of the estate of a deceased dentist
13 or a person who is legally authorized to act for a dentist who has been
14 adjudicated to be mentally incompetent for not more than one year after
15 the date the board receives notice of the dentist's death or
16 incapacitation pursuant to section 32-1270.

17 [6. A RECOGNIZED DENTAL SCHOOL, RECOGNIZED DENTAL THERAPY SCHOOL OR
18 RECOGNIZED DENTAL HYGIENE SCHOOL.]

19 K. A facility that offers dental services to the public by persons
20 licensed under this chapter shall be registered by the board unless the
21 facility is any of the following:

22 1. Owned by a dentist who is licensed pursuant to this chapter.

23 2. Regulated by the federal government or a state, district or
24 territory of the United States.

25 [3. A RECOGNIZED DENTAL SCHOOL, RECOGNIZED DENTAL THERAPY SCHOOL OR
26 RECOGNIZED DENTAL HYGIENE SCHOOL.]

27 L. Except for issues relating to insurance coding and billing that
28 require the name, signature and license number of the dentist providing
29 treatment, this section does not:

30 1. Authorize a licensee in the course of providing dental services
31 for a business entity registered pursuant to this section to disregard or
32 interfere with a policy or practice established by the business entity for
33 the operation and management of the business.

34 2. Authorize a business entity registered pursuant to this section
35 to establish or enforce a business policy or practice that may interfere
36 with the clinical judgment of the licensee in providing dental services
37 for the business entity or may compromise a licensee's ability to comply
38 with this chapter.

39 M. The board shall adopt rules that provide a method for the board
40 to receive the assistance and advice of business entities licensed
41 pursuant to this chapter in all matters relating to the regulation of
42 business entities.

43 N. An individual currently holding a surrendered or revoked license
44 to practice dentistry or dental hygiene in any state or jurisdiction in
45 the United States may not have a majority ownership interest in the
46 business entity registered pursuant to this section. Revocation and
47 surrender of licensure shall be limited to disciplinary actions resulting
48 in loss of license or surrender of license instead of disciplinary action.
49 Dentists or dental hygienists affected by this subsection shall have one

1 year after the surrender or revocation to divest themselves of their
2 ownership interest. This subsection does not apply to publicly held
3 companies. For the purposes of this subsection, "majority ownership
4 interest" means an ownership interest greater than fifty percent.>>

5 Sec. 2. Section 32-1231, Arizona Revised Statutes, is amended to
6 read:

7 32-1231. Persons not required to be licensed; school employee
8 lists; complaints; board jurisdiction

9 A. This chapter does not prohibit:

10 1. A dentist, dental therapist or dental hygienist who is
11 officially employed in the service of the United States from practicing
12 dentistry in the dentist's, dental therapist's or dental hygienist's
13 official capacity, within the scope of that person's authority, on persons
14 who are enlisted in, directly connected with or under the immediate
15 control of some branch of service of the United States.

16 2. A person, whether or not licensed by this state, from practicing
17 dental therapy either:

18 (a) In the discharge of official duties on behalf of the United
19 States government, including the United States department of veterans
20 affairs, the United States public health service and the Indian health
21 service.

22 (b) While employed by tribal health programs authorized pursuant to
23 Public Law 93-638 or urban Indian health programs.

24 3. An intern or student of dentistry, dental therapy or dental
25 hygiene from ~~operating~~ PRACTICING in the clinical departments or
26 laboratories of a recognized dental school, recognized dental therapy
27 school, recognized dental hygiene school or hospital under the supervision
28 of a dentist.

29 4. An unlicensed person from performing for a licensed dentist
30 merely mechanical work on inert matter not within the oral cavity in the
31 construction, making, alteration or repairing of any artificial dental
32 substitute or any dental restorative or corrective appliance, if the casts
33 or impressions for that work have been furnished by a licensed dentist and
34 the work is directly supervised by the dentist for whom done or under a
35 written authorization signed by the dentist, but the burden of proving
36 that written authorization or direct supervision is on the person charged
37 with having violated this provision.

38 5. A clinician who is not licensed in this state from giving
39 demonstrations, before bona fide dental societies, study clubs and groups
40 of professional students, that are free to the persons on whom made.

41 6. The state director of dental public health from performing the
42 director's administrative duties as prescribed by law.

43 7. A dentist or dental hygienist to whom a restricted permit has
44 been issued from practicing dentistry or dental hygiene in this state as
45 provided in sections 32-1237 and 32-1292.

46 8. A dentist, dental therapist or dental hygienist from practicing
47 ~~for educational purposes on behalf~~ IN THE CLINICAL DEPARTMENTS OR
48 LABORATORIES of a recognized dental school, recognized dental therapy
49 school or recognized dental hygiene school.

1 9. A dentist who holds an active and unrestricted license in
2 another state, territory or possession of the United States from
3 practicing for educational purposes in connection with recognized
4 continuing dental education. A dentist who practices under this
5 paragraph:

6 (a) May not receive compensation for dental services provided in
7 connection with recognized continuing dental education.

8 (b) Is subject to the jurisdiction and discipline of the board to
9 the same extent as dentists who are licensed in this state.

10 (c) May not provide any dental care or services in this state to a
11 person who is either:

12 (i) Physically unable to safely receive the dental care or
13 services.

14 (ii) Not mentally competent to knowingly and voluntarily consent to
15 the dental care or services.

16 (d) Shall file a restricted permit application on a form approved
17 by the board with the provider of the recognized continuing dental
18 education before providing any dental care or services in this state. The
19 provider of the recognized continuing dental education shall retain the
20 dentist's restricted permit application for a period of at least five
21 years.

22 B. A RECOGNIZED DENTAL SCHOOL SHALL ANNUALLY PROVIDE TO THE BOARD A
23 LIST OF THE LICENSED DENTISTS, DENTAL THERAPISTS AND DENTAL HYGIENISTS
24 THAT THE RECOGNIZED DENTAL SCHOOL EMPLOYS TO PRACTICE IN THE RECOGNIZED
25 DENTAL SCHOOL'S CLINICAL DEPARTMENTS OR LABORATORIES.

26 C. IF THE BOARD RECEIVES A COMPLAINT THAT NAMES A RECOGNIZED DENTAL
27 SCHOOL OR THAT ARISES FROM DENTAL CARE THAT IS PROVIDED AT A RECOGNIZED
28 DENTAL SCHOOL, THE BOARD SHALL FORWARD THE COMPLAINT TO THE RECOGNIZED
29 DENTAL SCHOOL ON A PERIODIC BASIS AS DETERMINED BY THE BOARD BUT NOT MORE
30 THAN SIX MONTHS AFTER THE BOARD RECEIVES THE COMPLAINT. THE RECOGNIZED
31 DENTAL SCHOOL SHALL REVIEW THE COMPLAINT PURSUANT TO THE RECOGNIZED DENTAL
32 SCHOOL'S INTERNAL QUALITY ASSURANCE PROCESS.

33 D. THE BOARD DOES NOT HAVE JURISDICTION OR AUTHORITY OVER ANY
34 PERSON, WHETHER OR NOT LICENSED BY THIS STATE, WHO IS ACTING WITHIN THE
35 SCOPE OF SUBSECTION A, PARAGRAPH 3 OR 8 OF THIS SECTION, EXCEPT THAT A
36 LICENSEE IS SUBJECT TO BOARD JURISDICTION FOR A CONVICTION AS DESCRIBED IN
37 SECTION 32-1263, SUBSECTION A, PARAGRAPH 2 AND IS REQUIRED TO COMPLY WITH
38 SECTION 32-3208.

39 <<Sec. 3. Section 32-1237, Arizona Revised Statutes, is amended to
40 read:

41 32-1237. Restricted permits

42 A. A person may apply for a restricted permit if the applicant
43 demonstrates to the board's satisfaction that the applicant:

44 1. Has a pending contract with a recognized charitable dental
45 clinic or organization or will be practicing for educational purposes in
46 connection with and while enrolled in recognized continuing dental
47 education that offers dental services without compensation or at a rate
48 that only reimburses the clinic for dental supplies and overhead costs and
49 the applicant will receive no compensation for dental services provided at

1 the clinic or organization or in connection with the recognized continuing
2 dental education.

3 2. Has a license to practice dentistry issued by another state or
4 territory of the United States or the District of Columbia.

5 3. Has been actively engaged in one or more of the following for at
6 least three years immediately preceding the application:

7 (a) The practice of dentistry.

8 (b) An approved dental residency training program.

9 (c) Postgraduate training deemed by the board equivalent to an
10 approved dental residency training program.

11 4. Is competent and proficient to practice dentistry.

12 5. Meets the requirements of section 32-1232, subsection A, other
13 than the requirement to meet section 32-1233.

14 B. For the purposes of meeting the requirements of subsection A of
15 this section, the provider of the recognized continuing dental education,
16 before the commencement of the recognized continuing dental education,
17 shall notify the board of the restricted permit applicants the provider
18 has accepted ~~[that]~~ [WHO] meet the requirements of section 32-1231,
19 [SUBSECTION A.] paragraph 9. The board shall acknowledge receipt of the
20 notification within five business days after the later of receiving
21 either:

22 1. The notification.

23 2. A copy of the applicants' valid fingerprint clearance cards.>>"

24 Enroll and engross to conform

25 Amend title to conform

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